

HOUSE BILL 1989

By Lankford

AN ACT to amend Tennessee Code Annotated, Title 2;
Title 6; Title 8; Title 36; Title 39; Title 40; Title 49;
Title 55; Title 58; Title 62; Title 63 and Title 66,
relative to armed forces.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 2-1-104(a)(1), is amended by deleting the subdivision and substituting instead:

(1) "Armed forces personnel" means members of the army, navy, air force, space force, marine corps, coast guard, environmental science services administration, and public health service of the United States or members of the merchant marine of the United States and their spouses and dependents;

SECTION 2. Tennessee Code Annotated, Section 6-54-143(b)(1), is amended by deleting the subdivision and substituting instead:

(1) The active and reserve components of the army, navy, air force, space force, marine corps, or coast guard of the United States;

SECTION 3. Tennessee Code Annotated, Section 8-18-101(4), is amended by deleting the subdivision and substituting instead:

(4) Soldiers, sailors, marines, airmen, or guardians in the regular army, navy, air force, or space force of the United States; and

SECTION 4. Tennessee Code Annotated, Section 8-30-307(a), is amended by deleting the subsection and substituting instead:

(a) When invitations to interview candidates are extended, whether for appointment or promotion, and the pool of candidates includes any person who has been honorably discharged from the army, navy, air force, space force, marine corps, or

coast guard or any member of the reserve components, as defined in 10 USC § 10101, who performs active federal service in the armed forces of the United States, these persons must be invited to interview.

SECTION 5. Tennessee Code Annotated, Section 8-48-201, is amended by deleting the section and substituting instead:

"Military service," as used in this part, includes the enlistment or induction into the United States army or any branch thereof, the United States navy, the air force, the space force, the marine corps, the coast guard, the merchant marine, or any other military activity carried on in the aid of the war effort.

SECTION 6. Tennessee Code Annotated, Section 36-7-102(18)(A), is amended by deleting the subdivision and substituting instead:

(A) Active and reserve components of the army, navy, air force, space force, marine corps, or coast guard of the United States;

SECTION 7. Tennessee Code Annotated, Section 39-16-301(e)(1), is amended by deleting the subdivision and substituting instead:

(1) Active and reserve components of the army, navy, air force, space force, marine corps, or coast guard of the United States;

SECTION 8. Tennessee Code Annotated, Section 39-17-1302(b)(1), is amended by deleting the subdivision and substituting instead:

(1) Was incident to the performance of official duty and pursuant to military regulations in the army, navy, air force, space force, coast guard, or marine service of the United States or the Tennessee national guard, or was incident to the performance of official duty in a governmental law enforcement agency or a penal institution;

SECTION 9. Tennessee Code Annotated, Section 39-17-1306(c)(1), is amended by deleting the subdivision and substituting instead:

(1) Is in the actual discharge of official duties as a law enforcement officer, or is employed in the army, air force, space force, navy, coast guard, or marine service of the United States or any member of the Tennessee national guard in the line of duty and pursuant to military regulations, or is in the actual discharge of official duties as a guard employed by a penal institution, or as a bailiff, marshal, or other court officer who has responsibility for protecting persons or property or providing security;

SECTION 10. Tennessee Code Annotated, Section 39-17-1309(e)(1), is amended by deleting the subdivision and substituting instead:

(1) Persons employed in the army, air force, space force, navy, coast guard, or marine service of the United States or any member of the Tennessee national guard when in discharge of their official duties and acting under orders requiring them to carry arms or weapons;

SECTION 11. Tennessee Code Annotated, Section 39-17-1311(b)(1)(A), is amended by deleting the subdivision and substituting instead:

(A) Persons employed in the army, air force, space force, navy, coast guard, or marine service of the United States or any member of the Tennessee national guard when in discharge of their official duties and acting under orders requiring them to carry arms or weapons;

SECTION 12. Tennessee Code Annotated, Section 40-16-101, is amended by deleting the second sentence and substituting instead:

"Members of the armed forces of the United States" includes all officers and enlisted personnel of the army, navy, air force, space force, marine corps, and coast guard while on active duty and also includes any and all persons subject to trial by court-martial under the Uniform Code of Military Justice, whether a civilian, reservist, or member of any other federal agency.

SECTION 13. Tennessee Code Annotated, Section 49-12-301, is amended by deleting the language:

R. "Uniformed service(s)" means the army, navy, air force, marine corps, coast guard as well as the commissioned corps of the national oceanic and atmospheric administration, and public health services.

and substituting instead:

R. "Uniformed service(s)" means the army, navy, air force, space force, marine corps, coast guard, as well as the commissioned corps of the national oceanic and atmospheric administration, and public health services.

SECTION 14. Tennessee Code Annotated, Section 55-4-120(a)(1)(C), is amended by deleting the subdivision and substituting instead:

(C) An owner or operator who operates in this state shall not be entitled to reciprocity for a period in excess of thirty (30) days; provided, that any personnel of the army, navy, marine corps, air force, or space force stationed in this state, whose motor vehicle is properly registered in that person's state of domicile, will not be required to reregister the vehicle in this state.

SECTION 15. Tennessee Code Annotated, Section 58-1-102(2), is amended by deleting the subdivision and substituting instead:

(2) "Active military service of the United States" means full-time duty in the army, navy (including marine corps), air force, space force, or coast guard of the United States;

SECTION 16. Tennessee Code Annotated, Section 58-1-217(b), is amended by deleting the subsection and substituting instead:

(b) Enlistment in the regular army, air force, space force, navy, marine corps, or coast guard of the United States shall be deemed a resignation by the person so enlisted of all commissions held in the military forces of this state.

SECTION 17. Tennessee Code Annotated, Section 62-3-108(2), is amended by deleting the subdivision and substituting instead:

(2) Commissioned medical or surgical officers of the United States army, navy, air force, space force, or marine hospital service;

SECTION 18. Tennessee Code Annotated, Section 62-76-106(a)(1), is amended by deleting the subdivision and substituting instead:

(1) "Honorably discharged veteran" means any person who has been honorably discharged from the army, navy, air force, space force, marine corps, or coast guard, or any person who has been honorably discharged from a reserve component as defined in 10 U.S.C. § 10101, having performed active federal service in the armed forces of the United States;

SECTION 19. Tennessee Code Annotated, Section 63-1-110(a), is amended by deleting the subsection and substituting instead:

(a) Any person licensed to practice a healing art or any branch thereof in this state who is an officer in the commissioned medical corps of the army, the navy, the air force, the space force, or the public health service of the United States shall not be required to register as provided in this chapter.

SECTION 20. Tennessee Code Annotated, Section 63-3-108, is amended by deleting the section and substituting instead:

This chapter shall not apply to the commissioned physicians and surgeons of the United States army, navy, air force, space force, or marine hospital service in the actual performance of their official duties, nor to physicians and surgeons or to osteopathic physicians and surgeons regularly licensed under the laws of this state, nor to visiting podiatrists called into consultation in this state from another state where they are duly qualified under the laws of that state to practice podiatry.

SECTION 21. Tennessee Code Annotated, Section 63-5-109(2), is amended by deleting the subdivision and substituting instead:

(2) The practice of dentistry and dental hygiene in the discharge of their official duties by graduate dentists and by dental hygienists in the United States public health service, army, navy, air force, space force, coast guard, or veterans administration;

SECTION 22. Tennessee Code Annotated, Section 63-5-130, is amended by deleting the first and second sentences and substituting instead:

Any person licensed to practice dentistry or dental hygiene in this state who is an officer in the commissioned dental corps of the army, navy, air force, space force, or the public health service of the United States shall not be required to register as required in this chapter. Such person shall file with the board an affidavit on a form to be furnished by the board, which affidavit shall state the date on which such person entered the army, navy, air force, space force, or the public health service of the United States and such other facts as tend to verify such service as the board shall deem necessary.

SECTION 23. Tennessee Code Annotated, Section 63-6-204(a)(3), is amended by deleting the first sentence and substituting instead:

This chapter shall not apply to surgeons of the United States army, navy, air force, space force, or marine hospital service regardless of the hospital or practice site; provided, that the surgeon's practice is part of the surgeon's authorized military service or training.

SECTION 24. Tennessee Code Annotated, Section 66-24-101(a)(20), is amended by deleting the subdivision and substituting instead:

(20) Discharges of soldiers, sailors, marines, airmen, guardians, and naval and army officers of the United States. County registers are required, upon application of

lawful holders thereof, to register such discharges without charge to the person named in the discharge, or to the holder of such discharge. Certified copies of such registered discharges issued by the register shall be legal evidence of such discharge;

SECTION 25. This act takes effect upon becoming a law, the public welfare requiring it.